

11. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFFS' SPECIAL INTERROGATORIES, SET ONE TO DEFENDANT MINHE, INC.
FILED BY: PARK, YONGCHAN
TENTATIVE RULING:

Appearance required.

12. 9:00 AM CASE NUMBER: C25-00272
CASE NAME: KATIE MOLLES VS. WAYNE ACKERMAN
HEARING IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE FILED RE: JESSE GRASTY, ESQ.
FILED BY: ACKERMAN, WAYNE
TENTATIVE RULING:

The motion to appear as counsel pro hac vice is granted.

13. 9:00 AM CASE NUMBER: C25-00291
CASE NAME: MONIQUE DERR VS. SC WALNUT CREEK, LLC
*HEARING ON MINOR'S COMPROMISE RE: COIL LEWIS. GARCIA
FILED BY: DERR, MONIQUE
TENTATIVE RULING:

The petition for minor's compromise is granted.

14. 9:00 AM CASE NUMBER: C25-01056
CASE NAME: AUDREY WILLIAMS VS. ROLLING HILLS MEMORIAL PARK
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: ROLLING HILLS MEMORIAL PARK
TENTATIVE RULING:

Hearing continued to January 26, 2026 at 9:00 a.m. for supplemental briefing. On or before January 12, 2026, parties shall file briefs, not to exceed seven pages each, addressing the following:

- Why this case should not be stayed pending the appeal in *Paula Frost v. Rolling Hills Memorial*

Park (Contra Costa County Superior Court Case No. C24-02653) given the overlapping issues and/or overlapping parties.

- Whether an arbitration contract may be modified or superseded after the death of one party, where the contract includes three or more parties. Notably, while defendant included argument on this point in the reply, plaintiff has not had the opportunity to respond. Defendant cited minimal authority outside the context of a deceased party's testamentary intent, which does not appear to be at issue here.

In addition to the supplemental briefing, the Court requests that, if in the possession of either party, "page 4 of 4" of the 2017 "Cemetery Agreement" be attached to a declaration (for ease of filing) and filed with the Court as it appears to have been omitted in the documents filed to date.

15. 9:00 AM CASE NUMBER: C25-01650

CASE NAME: SANDY PARK VS. RENE GAMBOA

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: GAMBOA, RENE

TENTATIVE RULING:

Before the Court is a demurrer by defendants Rene Gamboa and Lewis Brisbois Bisgaard & Smith, LLP to Plaintiff's complaint. For the reasons set forth, the demurrer is **sustained, with leave to amend**.

Background

Plaintiff Sandy Park filed her complaint against her former attorney, Rene Gamboa, and his law firm, Lewis Brisbois Bisgaard & Smith, LLP (the "Firm") commencing this action on June 12, 2025. Plaintiff alleges that Gamboa and the Firm represented her as a plaintiff in a lease dispute with Nancy Kim beginning in March 2021. (Compl. ¶¶ 1, 5, 6.) The prior action out of which Plaintiff's claims against defendants arise is Case No. 19-CV-341095 in the Superior Court for the County of Santa Clara (the "Kim Action"). (See, e.g., Compl. Exhs. D and E-8, among others.)

Park alleges defendants filed an ex parte application to be relieved as Plaintiff's counsel six weeks before the trial in the Kim Action based on Kim's allegedly "fabricated" story that Kim's signature on an August 12, 2018 note containing the disputed lease extension was forged. (Compl. ¶¶ 1-3, 8, 10.) (Exhibit H to the complaint refers to a note dated August 12, 2019 – see Nanette Barto, CQDE Decl. ¶ 2.) Plaintiff alleges she was on vacation, was not aware of the ex parte application or order relieving defendants from their representation until July 31, 2023, and she did not have an opportunity to contest the application. (Compl. ¶¶ 2, 6.) After she returned from vacation, she sent Gamboa information she contends showed Kim's position on the forgery was false. (Compl. ¶ 11.)

Park alleges on July 24, 2023, Kim filed a motion for reconsideration of an order denying her motion for summary judgment in which Kim accused Park of the forgery and perjury, and which was set for hearing on August 24, 2023, but Kim withdrew the motion, apparently after the ex parte application and order allowing Park's counsel to withdraw, which Plaintiff interprets as evidence that Kim knew her position on the forgery was false. (Compl. ¶¶ 12, 25, 26.) She also alleges Gamboa contacted